

Home

Requirements from Client

1. Institutional introduction / tagline and short overview text

- The Bhutan Alternative Dispute Resolution Centre is a national institution dedicated to resolving disputes through fair, efficient, and humane processes. Rooted in Bhutan's values of peace, harmony, and compassion, we advance mindful dialogue as a pathway to justice. We believe that conflict is inevitable, but hostility is not.
- Primary Slogan: "Mindful Dialogue. Sustainable Solutions."

2. Key services to highlight (list)

- Arbitration: Legally rigorous and professional case administration.
- Mediation: Facilitated dialogue focused on restoring balance and relationships.
- Conciliation & Negotiation: Targeted pathways for amicable resolution.
- Professional Training: Capacity-building for practitioners and neutrals.

3. Preferred CTAs (e.g. "File a Case", "Make an Enquiry") and their target links

- **Choose a wise resolution**
 - Target link: Case filing portal or services overview
- **Restore the flow of harmony**
 - Target link: Mediation services or success stories/impact page
- **Begin your mindful dialogue**
 - Target link: Contact us or general enquiry form or FAQ

4. Latest news items to feature (title, date, summary, link)

- Title: First ever BADRC-SIAC Conference on trends and practices in international Arbitration
- Date: May 6-7, 2026
- Summary:

The SIAC-BADRC Conference and Training Programme was held over two days in Thimphu on May 6 and 7, 2026 which marked a significant milestone in Bhutan's journey toward establishing a robust arbitration ecosystem. The event brought together international experts from Singapore International Arbitration centre (SIAC); Mr. Ng Kim Beng, Member of the SIAC Court of Arbitration and Managing Partner, Rajah & Tann, Singapore LLP, Ms. Schwetha Budhuri, Director and Head (South Asia) SIAC, and Ms. Snigdha Bhatta, Counsel at SIAC.

The first day featured a half day panel discussion conference on the theme of “Trends and practices in international arbitration” with Ms. Snigdha as the moderator with the panel members; Mr. Kim Beng, Ms. Schwetha, Dasho Pema Wangchuk (Justice of the Supreme Court of Bhutan), Dasho Tenzin (Secretary General of BADRC), and Ms. Kunzang Tshomo Dukpa (Founder and Managing Partner at Bhutanese Legal Solutions). The one hour discussion touched on Bhutan’s arbitral landscape and the evolution to the current ecosystem while constantly touching on the international standard of arbitral proceedings by the SIAC. The rest of the day was followed by a training on major international treaties and frameworks that govern international arbitration, the core principles of international arbitration, introduction to SIAC, arbitration lifecycle and SIAC rules 2025 by the foreign trainers.

The second day covered the same training but for judges of Bhutan. For the first time in Bhutan’s arbitration history, a dedicated full day training session was conducted specifically for sitting judges. This reflects Bhutan’s aim to have the judiciary well versed in pro arbitration principles, particularly judicial deference, minimal interference, and enforcement of foreign awards under the New York Convention.

- 5. Upcoming events (title, date, venue, description)**
- 6. Featured resources/documents to highlight**
- 7. Key statistics (e.g. cases handled, panel size, years active)**
- 8. Logos and names of institutional partners**
- 9. Contact details for quick access (phone, email, address)**

About

Requirements from Client

1. Mandate and legal basis (governing statute/legislation reference)

The Bhutan Alternative Dispute Resolution Centre (BADRC) is established as the nation's dedicated institutional mechanism for promoting and administering Alternative Dispute Resolution (ADR). Grounded in the ADR Act 2013 and strengthened by subsequent reforms like the ADR Amendment Act 2026, the Centre serves as a cornerstone of Bhutan's justice and governance framework.

Our mandate includes:

- Administering institutional arbitration, mediation, and negotiated settlements.
- Developing institutional systems, professional standards, and certification pathways.
- Cultivating domestic and international partnerships to support the long-term growth of ADR practice in Bhutan.

2. Organisational history (founding, key dates)

Founded in 2018, the Bhutan ADR Centre was conceived to improve access to justice and foster less adversarial methods of dispute resolution. Since its inception, the Centre has evolved from a case administration office into a national platform for professional training, policy development, and legal reform. By 2026, the Centre had successfully administered over 315 cases, including its first international arbitration case in 2025, marking a significant milestone in Bhutanese legal history.

3. Vision, mission and values statements

Vision: To foster peace, harmony, and justice through mindful dispute resolution.

Mission: To provide fair, efficient, and credible dispute resolution through mindful, impartial, and accessible processes.

Slogan: Mindful Dialogue. Sustainable Solutions.

Core Values:

Purpose: Peace & Harmony.

Credibility: Neutrality, Trust, and Professional Excellence.

Process: Mindfulness, Compassion, and Wisdom.

Outcome: Sustainability .

4. Organisational structure / organogram

Secretary General>>>> Under the Secretary general, there are the legal department, Finance

department, HR department, and the Admin Department.

5. Governance details (board/council members and roles)

Secretary General: Dasho Tenzin

Legal Department:

Registrar: Jitsuen Dema Tshering

Tribunal Secretary: Sonam Deki Chophil

Tribunal Secretary: Tenzin Yuden

Finance Department:

Finance Officer: Chador Wangdi

HR Department:

HR Officer: Chador Wangdi

Admin Department:

Administrative Officer: Chador Wangdi

Receptionist: Gyem Lham

Driver/PA to the Hon'ble Secretary General: Jigme Namgay

6. Secretary General's message (text and photo)

7. Staff directory (names, titles, photos, contact details)

8. Annual reports (PDF files by year)

9. aKey institutional milestones (dates and descriptions)

2018: Official establishment of the Bhutan Alternative Dispute Resolution Centre.

2024:

A. Stakeholder Consultation Meetings on the ADR Amendment Act 2013

The Bhutan ADR Centre, together with Members of Parliament, conducted stakeholder consultation meetings across Mongar, Lhuentse, Wangdue Phodrang, Gelephu, Phuentsholing Thromde and Samtse from August to September of 2024. The consultations engaged contractors, business communities, engineers and Dzongkhag officials to gather views and recommendations on the proposed amendments to the ADR Act 2013 and strengthen the legal framework governing alternative dispute resolution in Bhutan.

B. Workshop on Strengthening Bhutan's ADR Landscape: Regional Collaboration and Professional Excellence

In October, the Bhutan ADR Centre organized a workshop aimed at enhancing Bhutan's ADR ecosystem through regional cooperation and professional development. The programme brought together ADR practitioners, lawyers and legal professionals from private firms and institutions to discuss emerging trends, best practices and opportunities for collaboration in dispute resolution.

C. Memorandum of Understanding between Bhutan ADR Centre and Indian Council of Arbitration

The Bhutan ADR Centre signed a Memorandum of Understanding with the Indian Council of Arbitration to establish a framework for cooperation in promoting arbitration and mediation. The partnership seeks to facilitate knowledge exchange, capacity building initiatives and institutional collaboration between the two organizations.

2025:

A. Training on Drafting Arbitral Awards in International Commercial Arbitration

The Bhutan ADR Centre conducted specialized training on drafting arbitral awards in international commercial arbitration for prospective arbitrators in Bhutan. The programme focused on award writing techniques, international standards and best practices in arbitral decision-making.

B. Training on Introduction to International Commercial Arbitration

In collaboration with White & Case LLP, Singapore, the centre organized a training programme introducing participants to the principles and practice of international commercial arbitration.

The training was attended by arbitrators, legal professionals and practitioners seeking to develop expertise in international dispute resolution.

C. Panel Discussion on International Best Practices in International Arbitration

A panel discussion was convened at the Supreme Court of Bhutan to explore international best practices in arbitration. The event brought together justices, judges, arbitrators, legal practitioners, in-house counsel, corporate executives and professionals from both public and private sectors to discuss developments and practical experiences in international arbitration.

D. Consultation Meeting on Arbitration with Tsirang, Dagana, Trongsa, Samtse Dzongkhag Administration, and Phuentsholing Thromde Administration

The Bhutan ADR Centre conducted consultation meetings with the Dzongkhag Administrations of Tsirang, Dagana, Trongsa, Samtse, and Phuentsholing Thromde Administration to enhance awareness and understanding of arbitration as an effective dispute resolution mechanism. The consultations engaged registrars, procurement officials, local government representatives, community leaders and business stakeholders, including contractors, engineers and lawyers. Conducted in collaboration with students of the ADR Clinic from JSW School of Law, the meetings focused on the practical application of arbitration in resolving commercial, procurement-related and administrative disputes, while promoting its integration within local governance structures.

E. Mediation Training and Certification Programme

The Bhutan ADR Centre, in collaboration with the Singapore Mediation Centre, conducted a mediation training and certification programme aimed at building a pool of qualified mediators in Bhutan. The programme attracted legal professionals from private firms, government agencies, institutions, colleges and law schools.

F. Memorandum of Understanding between Bhutan ADR Centre and Singapore Mediation Centre

The Bhutan ADR Centre signed a Memorandum of Understanding with the Singapore Mediation Centre to establish a Mediation Registry within the Bhutan ADR Centre and facilitate the training and professional development of mediators in Bhutan.

2026:

A. Training on construction Arb - in collaboration with White and Case, Singapore

Bhutan ADR Centre in collaboration with White & Case, successfully conducted a two-day Construction Arbitration Training on April 6-7, 2026 at Terma Linca Resort & Spa, Thimphu.

The training was organised in recognition of the increasing number of construction-related disputes administered by BADRC, making specialised capacity building in construction arbitration both timely and necessary. The programme also forms part of BADRC's initiative to institutionalise Mandatory Professional Development (MPD) Programmes, in line with the broader Continuing Legal Education (CLE) requirements of Bhutan's justice sector.

The training brought together a diverse group of legal and dispute resolution professionals, including arbitrators, legal officers from the Office of the Attorney General, representatives from the Ministry of Finance, the Ministry of Infrastructure and Transport, financial institutions, and members of the Bar Council. The programme provided participants with practical knowledge and advanced insights into the legal and procedural aspects of construction arbitration.

The training was facilitated by Ms Anne Secomb and Dr Matthew Secomb, both of whom have previously served as trainers for BADRC. Their extensive international experience in construction arbitration, combined with their practical and engaging teaching approach, provided participants with valuable insights into best practices in the field. Their professionalism, expertise, and commitment greatly contributed to the success of the programme.

B. First ever BADRC-SIAC Conference on Trends and Practices in International Arbitration

The SIAC-BADRC Conference and Training Programme was held over two days in Thimphu on May 6 and 7, 2026 which marked a significant milestone in Bhutan's journey toward establishing a robust arbitration ecosystem. The event brought together international experts from Singapore International Arbitration centre (SIAC); Mr. Ng Kim Beng, Member of the SIAC Court of Arbitration and Managing Partner, Rajah & Tann, Singapore LLP, Ms. Schwetha Budhuri, Director and Head (South Asia) SIAC, and Ms. Snigdha Bhatta, Counsel at SIAC. From Bhutan, we had Dasho Pema Wangchuk (Justice of the Supreme Court of Bhutan), Dasho Tenzin (Secretary General of BADRC), and Ms. Kunzang Tshomo Dukpa (Founder and Managing Partner at Bhutanese Legal Solutions) as speaker for the panel.

Arbitration

Requirements from Client

1. Overview/description of arbitration services

Arbitration at the BADRC is a formal and credible dispute resolution process where parties submit their disagreement to one or more professional “neutrals” (arbitrators) for a binding and reasoned determination. Unlike adversarial litigation, our arbitration services emphasize groundedness and procedural fairness, providing a stable environment where complex disputes, particularly in construction, procurement, and commercial sectors can be resolved with technical excellence and institutional integrity.

2. Distinction between domestic and international arbitration procedures

The BADRC administers both Domestic Arbitration (DA) and International Arbitration (IA).

Domestic Arbitration: Tailored for disputes within Bhutan, often involving public procurement, state-owned enterprises, and private contractors.

International Arbitration: Marking a milestone in 2025 with our first international case, these procedures align with international best practices (such as SIAC and UNCITRAL standards) to provide global relevance and enforceability for cross-border disputes.

3. Step-by-step guidance on how to commence arbitration

Commencing a case is a structured move from “deadlock to dialogue” . To begin, a party must:

1. **Verify the Clause:** Ensure your contract contains a valid arbitral clause or a separate arbitration agreement naming the BADRC as the seat of arbitration.
2. **Submit a Request for arbitration along with the Notice of Arbitration:** File a formal Request for Arbitration addressed to the General Secretary. Fill in your submission in the ‘Notice of Arbitration’ template with all the requirements noted in the Arbitration Rules 2026. Submit the Notice of Arbitration and the request for arbitration to the Registrar.
3. **Payment:** Pay the non-refundable registration fee when submitting the notice.
4. **Notification:** The Registrar will facilitate the formal notification of the respondent to begin the procedural flow.

4. Recommended model arbitration clause text

MODEL CLAUSE

Arbitration Clause

In drawing up contracts, Centre recommends that parties include the following arbitration clause: Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration. The arbitration shall be administered by the Bhutan Alternative Dispute Resolution Centre (Bhutan ADR Centre) in accordance with Bhutan Arbitration Rules for the time being in force, which rules are deemed to be incorporated by reference in this clause.

The seat of the arbitration shall be ...agreed country ...

The Arbitral Tribunal shall consist of ...any agreed odd number

This Contract shall be governed by

Language of the arbitration shall be.....

Arb-Med-Arb (AMA)Clause

Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Bhutan ADR Centre (“BADRC”) in accordance with the Arbitration Rules of the BADRC for the time being in force, which rules are deemed to be incorporated by reference in this clause.

The seat of the arbitration shall be ...agreed country ...

The Arbitral Tribunal shall consist of ...any agreed odd number

This Contract shall be governed by

Language of the arbitration shall be.....

The parties further agree that following the commencement of arbitration, they will attempt in good faith to resolve the Dispute through mediation at the BADRC, in accordance with the BADRC Arb-Med-Arb procedure for the time being in force. Any settlement reached in the course of the mediation shall be referred to the Arbitral Tribunal appointed by parties and may be made a consent award on agreed terms.

5. Applicable rules (documents/links)

Our proceedings are governed by the ADR Amendment Act 2026 and the BADRC Arbitration Rules 2026. These rules ensure that the process remains legally rigorous yet humane, prioritizing clarity and insight.

This link contains the ADR Act 2013 and the ADR Amendment Act 2026:

<https://drive.google.com/drive/folders/1ILdzEDCDq-Uj8UYyDJmYjAFRELvY2DnQ?usp=sharing>

6. Fee schedule (tables or PDF)

7. Downloadable forms (e.g. request for arbitration)

<https://drive.google.com/drive/folders/1cEKv7ZtaRb244ffUssE-lfZf6lGpJSys?usp=sharing>

8. Emergency or interim measures procedures, if applicable

ARB-MED-ARB PROCEDURE (“AMA PROCEDURE”)

1. This AMA Procedure shall apply to all disputes submitted to the Bhutan ADR Centre (“BADRC”).
2. Parties can submit disputes for resolution under AMA procedure based on AMA Clause in the arbitration agreement or based on agreement of parties at any stage of arbitration proceedings without AMA Clause.
3. A party wishing to commence an arbitration under the AMA Clause shall file with the Centre a notice of arbitration in accordance with the arbitration rules applicable to the arbitration proceedings.
4. The Arbitral Tribunal shall be constituted by BADRC in accordance with the Arbitration Rules and/or the parties’ arbitration agreement.
5. The Arbitral Tribunal shall, after the exchange of the Notice of Arbitration and Response to the Notice of Arbitration, stay the arbitration and inform the Centre that the case can be submitted for mediation.
6. The Centre upon receipt of stay of arbitration proceedings from the Arbitral Tribunal, shall appoint the mediator as per Mediation Rules and send the case with all documents lodged by the parties to the mediator. Thereafter, mediation proceedings will commence upon receipt of documents by the Mediator from the Centre. All subsequent steps in the arbitration shall be stayed pending the outcome of mediation.
7. The mediation shall be completed within 4 weeks from the Mediation Commencement Date, unless the Centre extends the time. For the purposes of calculating any time period in the arbitration proceeding, the time period will stop running at the Mediation Commencement Date and resume upon notification of the termination of the mediation proceeding.

8. At the termination of the 4-week period (unless the deadline is extended by the Centre or in the event the dispute cannot be settled by mediation either partially or entirely at any time prior to the expiration of the 4-week period, mediator shall promptly inform the Centre of the outcome of the mediation, if any.
9. In the event that the dispute has not been settled by mediation either partially or entirely, the Centre will inform the Arbitral Tribunal that the arbitration proceeding shall resume. Upon the date of the Centre's notification to the Arbitral Tribunal, the arbitration proceeding in respect of the dispute or remaining part of the dispute (as the case may be) shall resume in accordance with the Arbitration Rules.
10. In the event of a settlement of the dispute by mediation between the parties, Mediator shall inform the Centre that a settlement has been reached. If the parties request the Arbitral Tribunal to record their settlement in the form of a consent award, the parties or the Centre shall refer the settlement agreement to the Arbitral Tribunal and the Arbitral Tribunal may render a consent award on the terms agreed to by the parties.
11. If the parties do not wish to record their settlement in the form of a consent award, pending arbitration which has been stayed shall be terminated and the Arbitral Tribunal will be dissolved accordingly.
12. The parties or the Centre shall refer the settlement agreement to the Arbitral Tribunal and the Arbitral Tribunal may render a consent award on the terms agreed to by the parties.
13. Parties who have agreed to solve disputes under AMA procedure when their arbitration is pending before Arbitral Tribunal, same procedure from 6-11 shall be followed.
14. Fees for mediator under AMA procedure shall be according to the Mediation Rules
15. Administrative fees under AMA procedure shall be in accordance with Arbitration Rules, or in accordance with Mediation Rules if the parties do not wish to record settlement agreement as consent award.

9. Description of case administration process

The Bhutan ADR Centre provides dedicated support throughout the lifecycle of a case:

Procedural Guidance: Assisting parties with rules and timelines.

Neutral Appointment: Facilitating the selection of qualified arbitrators from our professional panels.

Financial Management: Holding deposits and managing the costs of the tribunal.

Award Scrutiny: Ensuring that arbitral awards meet the technical standards required for enforceability.

Pre-hearing stage:

1. Notice of Arbitration: The party who wishes to register the case with the Centre can download the Notice of Arbitration template from the website and input all the submissions to fit the template. It is important for the Notice of Arbitration to reflect an arbitral clause or arbitration agreement. The party registering the case should submit an application addressed to the Secretary General requesting for arbitration along with the Notice of Arbitration to the Registrar. While submitting to the Registrar, you have to make a non-refundable payment.
2. Review of your submission: The Registrar will go through your Notice of Arbitration and see if it's duly complied with as per the arbitration rules. It will be accepted if everything

10. Frequently asked questions and answers

1. Is an arbitral award final?
 - Yes. Unlike court decisions, arbitration is designed for speed and finality, with very limited grounds for appeal.
2. How long does the process take?
 - While it depends on the complexity, BADRC is committed to “fast and reliable” services that reduce the delays common in traditional litigation.
3. Is the process confidential?
 - Yes. Trust and confidentiality are core values of our institution.

11. Other downloadable resources

Mediation

Requirements from Client

1. Overview of mediation and negotiated settlement services

Mediation and Negotiated Settlement at the BADRC are voluntary and confidential processes designed to help parties move beyond deadlock toward mutually acceptable resolutions. While arbitration focuses on a binding determination, our mediation services emphasize *flow*; the restorative power of dialogue where hardened positions soften and communication begins to circulate again. These services are ideal for parties who wish to resolve their differences in a way that is less adversarial, more cost-effective, and deeply protective of ongoing professional or personal relationships.

2. Commencement guidance (how to start a mediation)

Starting a mediation is an invitation to transition from “hostility to harmony”. To commence a process:

1. Initial Inquiry: Contact the BADRC Registrar to discuss whether your dispute is suitable for mediation or a supported negotiated settlement.
2. Request for Mediation: Submit a formal request form. If the other party has not yet agreed to mediate, the Centre can act as a Messenger of Peace (the Magpie) to invite them into the process.
3. Agreement to Mediate: Once both parties consent, the Registrar will facilitate the signing of a formal Mediation Agreement, ensuring all participants understand the ground rules of confidentiality and neutrality.

3. Mediation rules document

https://docs.google.com/document/d/180v22smjAJPKPOi-NlkAYc_nc-c_jw-Mgga-J9mfOk8/edit?tab=t.0

4. Fee schedule

5. Mediator appointment process description

6. Settlement and enforcement information

7. Model clause text

MODEL CLAUSE

1. Mediation only

In the event of any dispute arises out of or relates to this contract, or the breach thereof, the parties agree first to try in good faith to settle the dispute by mediation administered by the 'Bhutan ADR Centre, in accordance with their Mediation Rules ("BADRC Mediation Rules") for the time being in force, before resorting to arbitration, litigation, or some other dispute resolution procedure.

The Mediation shall consist of sole/ _____ numbers of Mediators.

The seat of Mediation shall be.....

The Language of the Mediation shall be _____.

The mediation process and settlement Agreement, if any, shall be governed by, construed and take effect in accordance with the substantive law of _____.

2. Mediation and arbitration

In the event of a dispute arising out of or relating to this contract, including any question regarding its existence, validity or termination, the parties shall first seek settlement of that dispute by mediation in accordance with the Bhutan ADR Rules, which Rules are deemed to be incorporated by reference into this clause.

If the dispute is not settled by mediation within [.....] days of the commencement of the mediation, or such further period as the parties shall agree in writing, the dispute shall be referred to and finally resolved by arbitration under the BADRC Arbitration Rules, which Rules are deemed to be incorporated by reference into this clause.

The language to be used in the mediation and in the arbitration shall be [].

The governing law of the contract shall be the substantive law of [].

In any arbitration commenced pursuant to this clause;

(a) the number of arbitrators shall be [one/three]; and

(b) the seat, or legal place, of arbitration shall be [City and/or Country].

8. Downloadable forms

9. Frequently asked questions and answers

1. Is mediation confidential?
 - Yes. Confidentiality is a core value, ensuring parties can speak freely without fear that their words will be used against them in court.
2. What if we can't agree?
 - Mediation is voluntary. If a settlement is not reached, parties remain free to pursue arbitration or litigation.
3. How does mediation support GNH?
 - By focusing on Harmony and Compassion, mediation reduces social friction and preserves the communal “habit of dialogue” central to Bhutanese values.

Panels

Requirements from Client

1. **Profile details for each arbitrator/mediator: name, photograph, nationality, languages, qualifications, professional experience, areas of expertise**

<https://drive.google.com/drive/folders/18HrndiBgm3qTQ7ce7kRwjy7cKZlYJC7?usp=sharing>

2. **BADRC-approved contact restrictions/policy (what contact information may be published)**

- Whatever is there on the CV can be published

3. **Preferred search/filter categories (e.g. expertise, language, nationality)**

- Domestic arbitrator
- Bhutanese international arbitrator
- International arbitrator

Rules & Legislation

Requirements from Client

1. Current BADRC rules (documents)

2. Archived/previous versions of rules

This link only contains the ADR rules and regulations 2019:

https://drive.google.com/drive/folders/1eaW_OKx4be3Q7FdiekS_Fto5adiy5K24?usp=drive_link

3. Alternative Dispute Resolution Act text and amendments

This link contains the ADR Act 2013 and the ADR Amendment Act 2026:

<https://drive.google.com/drive/folders/1lLdzEDCDq-Uj8UYyDJmYjAFRELvY2DnQ?usp=sharing>

4. Relevant regulations

5. Practice notes and guidelines

6. Forms

This link contains the downloadable forms for arbitration:

<https://drive.google.com/drive/folders/1cEKv7ZtaRb244ffUssE-lfZf6lGpJSys?usp=sharing>

7. Fee schedules

8. Model clauses

MODEL CLAUSE (for arbitration)

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MODEL CLAUSE (for Mediation)

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The governing law of the contract shall be the substantive law of [].

In any arbitration commenced pursuant to this clause;

- (a) the number of arbitrators shall be [one/three]; and
- (b) the seat, or legal place, of arbitration shall be [City and/or Country].

9. Version number and effective date for each document

1. ADR Act of Bhutan 2013- Version 1, effective from 14/03/2013
2. ADR Act of Bhutan (Amended in 2026)- Version 2, effective from 07/02/2026

3. ADR Rules and Regulations 2019- Version 1, effective from 22/07/2019
4. Arbitration Rules 2023- Version 1, effective from 01/07/2023
5. Mediation Rules 2023- Version 1, effective from
6. Arbitration Rules 2026- Version 2, effective from
7. Mediation Rules 2026- Version 2, effective from

Resources

Requirements from Client

1. Reports

Post- Conference and training Report

Event name: Conference on Trends and practices in international Arbitration, and training for Organizers: Singapore International Arbitration Centre (SIAC) and Bhutan Alternative Dispute Resolution Centre (BADRC)

Date: May 6-7, 2026

Venue: Namgay Heritage and Thimphu Deluxe, Thimphu

Total attendees: 140 during the first day and 25 during the second day

The SIAC-BADRC Conference and Training Programme was held over two days in Thimphu on May 6 and 7, 2026 which marked a significant milestone in Bhutan's journey toward establishing a robust arbitration ecosystem. The event brought together international experts from Singapore International Arbitration centre (SIAC); Mr. Ng Kim Beng, Member of the SIAC Court of Arbitration and Managing Partner, Rajah & Tann, Singapore LLP, Ms. Schwetha Budhuri, Director and Head (South Asia) SIAC, and Ms. Snigdha Bhatta, Counsel at SIAC.

Day 1 featured a half day panel discussion conference on the theme of "Trends and practices in international arbitration" with Ms. Snigdha as the moderator with the panel members; Mr. Kim Beng, Ms. Schwetha, Dasho Pema Wangchuk (Justice of the Supreme Court of Bhutan), Dasho Tenzin (Secretary General of BADRC), and Ms. Kunzang Tshomo Dukpa (Founder and Managing Partner at Bhutanese Legal Solutions). The one hour discussion touched on Bhutan's arbitral landscape and the evolution to the current ecosystem while constantly touching on the international standard of arbitral proceedings by the SIAC. The discourse also touched on Bhutan's current loopholes in arbitration such as lack of awareness and pathological arbitral clauses. On the other hand, the foreign panelists touched on the provisions that make SIAC work such as the expedited procedures and early dismissal mechanisms from the 7th edition of the SIAC Rules 2025. The Conference touched on Gross National Happiness as the distinguishing factor of Bhutan from other similar centres as this gives a profound opportunity to reimagine arbitration itself and transform GNH into commercial justice.

After the conference, the foreign delegates conducted training for the participants touching on major international treaties and frameworks that govern international arbitration, the core principles of international arbitration, introduction to SIAC, arbitration lifecycle and SIAC rules 2025, interim aids, roles and responsibilities of the SIAC Court, Tribunal constitution and challenges, their roles, awards, and the role of courts in supporting and supervising arbitration.

The second day covered the same training but for judges of Bhutan. For the first time in Bhutan's arbitration history, a dedicated full day training session was conducted specifically for sitting judges. This reflects Bhutan's aim to have the judiciary well versed in pro arbitration principles, particularly judicial deference, minimal interference, and enforcement of foreign awards under the New York Convention.

The SIAC-BADRC conference and training of May 6-7, 2026 achieved significant technical training outcomes while also surfacing Bhutan's honest assessment of the arbitral landscape. The 2 days marked a deliberate and intentional step taken towards a longer institutional journey and strengthening of the arbitral ecosystem in Bhutan.

2. Articles

3. Newsletters

4. Speeches

5. Research papers- N/A

6. Brochures and guides

7. Training materials

8. Preferred categorisation/tags for search and filtering

News & Events

Requirements from Client

- 1. Announcements**
- 2. Conference details**
- 3. Training programme information**
- 4. Institutional visit records**
- 5. MoUs signed (details)**
- 6. Vacancy notices**
- 7. Tender notices**
- 8. General notices**
- 9. Photo stories**
- 10. Event registration links**
- 11. Archived news and events for reference**

International

Requirements from Client

1. List of institutional partners

- Singapore International Arbitration Centre
- Singapore Mediation Centre
- Indian Council of Arbitration (ICA)

2. MoUs (copies/details)

3. Memberships (organisations BADRC belongs to)

4. Conventions BADRC is party to

- New York Convention

5. Regional initiative information

Regional ecosystem strengthening: BADRC engages in regional workshops and consultations to promote cross-border commercial confidence, reduce transaction friction, and support economic development across South Asia.

Academic and professional development networks: Collaboration with international faculty, regional experts, and the ADR Clinic at Jigme Singye Wangchuck (JSW) School of Law ensures continuous knowledge exchange and international exposure for emerging practitioners. Workshops, conferences, and trainings on ADR provided to government lawyers, private practitioners, and the involvement of the judiciary brings together key players to the centre of the ADR ecosystem in Bhutan.

6. Description of BADRC's international engagement activities

Contact

Requirements from Client

1. Office address(es)

- 1st Floor of NPPF Commercial Building, opposite Shoppers Store, Rabten Lam, Lower Changangkha.

2. Map/location details

3. Telephone number(s)

4. Email address(es)

5. Preferred enquiry form fields

6. Office hours

- 09:00 A.M. to 05:00 P.M.

7. Social media links

Facebook: <https://www.facebook.com/p/Bhutan-ADR-Centre-100089551991211/>

Linkedin: <https://www.linkedin.com/company/bhutan-adr-centre/posts/>

8. Anti-spam/verification preference (e.g. CAPTCHA)

All public-facing forms (Case Filing, Inquiries, Contact Us) must implement an invisible anti-spam verification solution (such as Cloudflare Turnstile or invisible reCAPTCHA) combined with backend honeypot fields. The verification mechanism must be frictionless, mobile-responsive, accessible to users with disabilities, and compliant with modern privacy standards.

Cases & Statistics

Requirements from Client

1. Non-confidential aggregate case statistics approved for release

2. Sectoral breakdown of cases

BADRC's caseload is heavily concentrated in public infrastructure and commercial procurement:

Primary Sectors: Construction disputes and the public procurement of goods and services form the overwhelming majority of matters.

Secondary Categories: Commercial sales of goods, rental disputes, and breach of partnership agreements

Institutional Context: The majority of registered cases involve disputes over public procurement contracts between government agencies and private contractors.

3. Annual caseload figures

Since its inception in 2018, BADRC has administered over 300+ cases till date.

Sl. No.	Particulars	2018	2019	2020	2021	2022	2023	2024	2025	2026	Total
1	Total Case Registered (DA)	35	47	43	34	40	48	35	26	19	327
2	Total Case Registered (IA)	0	0	0	0	0	0	0	1	0	1

4. Case-processing time/data

5. Any other public data approved for release

6. Confirmation that no confidential case data will be shared

- In strict compliance with the ADR Act, BADRC procedural rules, and the core institutional value of Trust and Confidentiality, no confidential case details, party names, contract specifics, or non-public proceeding records are disclosed.

Media & Gallery

Requirements from Client

- 1. Photographs organised by event/category, with captions and dates**
- 2. Videos links**

Careers & Procurement

Requirements from Client

- 1. Current vacancies (job descriptions, deadlines)**
- 2. Consultancy opportunities**
- 3. Tender notices and terms of reference**
- 4. Application instructions**
- 5. Archived/past notices**

Policies & Legal Notices

Requirements from Client

1. Privacy policy text

Privacy Policy Last updated: [Date]

BADRC is committed to protecting your privacy. This Privacy Policy explains how we collect, use, and safeguard your personal information when you visit our website.

1. Information We Collect

1. **Personal Data You Provide:** When you contact us, register an account, or subscribe to our services, we may collect personal information such as your first and last name, email address, phone number, and postal address.
2. **Usage Data:** We automatically collect information when you visit our website, including your IP address, browser type, pages visited, time and date of visit, and diagnostic data.

2. How We Use Your Information

We use your personal data to:

1. Provide and maintain our service
2. Manage your account and registration
3. Contact you with updates or security information
4. Manage your requests and inquiries
5. Analyze usage trends and improve our service

3. Data Sharing

We may share your information with service providers, affiliates, or business partners who assist us in operating our website and providing our services. We require these parties to honor this Privacy Policy.

4. Data Retention

We retain your personal data only as long as necessary to fulfill the purposes outlined in this policy, comply with legal obligations, resolve disputes, and enforce our agreements.

5. Data Security

We implement reasonable security safeguards to protect your information against unauthorized access, disclosure, or modification.

6. Your Rights

Depending on your jurisdiction, you may have the right to access, correct, or request deletion of your personal data. Contact us at [Contact Email] to exercise these rights.

7. Changes to This Policy

We may update this Privacy Policy. Changes will be posted on this page with an updated date.

2. Cookie notice (if required)

BADRC uses cookies to enhance your browsing experience. By continuing to use our website, you consent to our use of cookies as described in this notice.

What Are Cookies?

Cookies are small text files stored on your device when you visit a website.

How We Use Cookies

Necessary Cookies: Essential for the website to function properly

Functional Cookies: Enable enhanced functionality and personalization

Analytical Cookies: Help us understand how visitors interact with our site to improve performance

Managing Your Preferences

You can manage cookie settings through your browser or our cookie banner. Disabling certain cookies may affect website functionality.

3. Terms of use

Last updated: [2026]

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4. Accessibility statement

The vision of the BADRC is to foster justice through impartial and accessible processes. We believe that meaningful access to justice is a universal right. We strive to ensure our digital presence is accessible to all individuals, regardless of their physical or technical abilities. We are continually refining our site to meet international accessibility standards, ensuring that the “Breath” of dialogue is available to every citizen and partner.

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No Liability

To the fullest extent permitted by law, BADRC shall not be liable for any damages arising from your use of this website.

7. Document-retention policy information

In accordance with our core value of sustainability, the BADRC maintains a rigorous document-retention policy to ensure that solutions are practical and enduring.

Case Records: Official case files, including arbitral awards and settlement agreements, are

retained in secure, confidential archives for the period required by the ADR Act to support long-term legal certainty.

Integrity of Data: Our record-keeping systems are designed to reflect stability, ensuring that institutional data is retrievable, accurate, and protected against unauthorized access.

Confidentiality: Once the mandatory retention period has expired, documents are disposed of through secure methods that preserve the privacy and dignity of all involved parties